

Q.7a (20 marks): Factors responsible for decline in marriage and anthropological interpretations of live-in rela...

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Marriage as per Seligman is a union between a man and woman such that child produced to the woman is regarded as legitimate offspring to the couple.

There has been decline in the institution of marriage due to various factors! -

① Industrialization, urbanization
↳ both man-woman are working have economic goals -

↳ Wedding cost and cost of living together has risen.

↳ Individualism - which do not want bondage of marriage and freedom is supreme.

Case Study In Singapore, couples living together, but do not marry → not ready for taking responsibility, want no kids

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② Feminist movement

↳ female consider marriage as subordination to patriarchal society

↳ biological determinism not acceptable.

③ Legal factors

↳ same-sex marriage not allowed in many countries → forced to remain single.

④ Spinsterhood tendency due to new found goals like passion for music, art etc. considers marriage as responsibility.

⑤ Socialisation cost in developed countries is high, which restrict people to marry.

live-in-relationship → a form of social relation between a couple where they co-habit and performs various functions of marriage but do not marry.

Anthropological interpretation

① functional approach - consider it as threat to institutions of marriage and family. Leads to their disintegration. Question of legitimacy and child responsibility.

② Post-modernist - they call it "liquid love". Individual will is supreme and accepts the freedom and will to choose one partner. It supports live-in, where person willingly enters and exists.

③ Modernist companionship - they view live-in as relation, with

couple not wanting responsibility. Work as
"long as happy" in relation

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Interpretation as per society

Rural
↓
still values marriage
between family
↓
consider it as
immoral

Urban
- allow
someone as
gives freedom to
individual's choice

Legal position → allowed in some countries,
Concerns → legitimacy of child born
→ Rights of women in such
relator.

Relevance In Indian context, Supreme
Court recognised live-in relation in
Indra Sharma Case. And, provide for
rights of property inheritance to women
under Sec. 125 CrPc. Social institutions
need to adapt for the changes brought
by it.